

for such divorce shall have effect, until the same shall be sanctioned by two-thirds of both houses of the general assembly.

1824—(15)

Sec. 1.

Causes of divorce.

Natural impotency.

1832—(20)

Sec. 1.

Chancery court may grant divorces in cases of adultery, abandonment, & extreme cruelty.

1820—(20)

Sec. 2.

Application for divorce to be by bill in chancery.

Ib. Sec. 3.

Notice to non-resident defendants.

Ib. Sec. 4.

Defendants may answer without oath. Bill not confessed for want of answer.

Ib. Sec. 5.

Decree not to release offending party.

Ib. Sec. 6.

Alimony.

Ib. Sec. 7.

Temporary orders.

§ 2. Where a marriage hath been heretofore, or shall be hereafter, contracted and celebrated between any two persons, and it shall be adjudged, that either party, at the time of the contract, was, and still is, naturally impotent, in every such case, it shall be lawful for the injured person to obtain, in manner heretofore provided by law, a divorce from the bonds of matrimony.

§ 3. The several chancery courts of this state are hereby invested with full power and authority to decree divorces, in the manner prescribed by law, and in the following cases, that is to say: in favor of the husband, where his wife shall have been taken in adultery, or voluntarily left his bed and board for the space of three years, with intention of abandonment; and in favor of the wife, where her husband shall have left her for the space of three years, with intention of abandonment; or where he shall have abandoned her, and lived in adultery with another woman; or where his treatment to her is cruel, barbarous, and inhuman.¹

§ 4. In the cases before-mentioned, the party, desirous of obtaining a divorce, may apply to the chancery court of that county, in which he or she resides, by a bill in chancery, stating the grounds of the application, on which such proceedings shall be had, as are usual in other suits in chancery.

§ 5. If the court shall be satisfied, that the defendant is not a resident of this state, order of publication shall be made as in other cases of non-resident defendants, except that the order shall succinctly state the object of the bill.

§ 6. The defendant may appear and answer the complainant's bill, without oath, denying the allegations thereof, or if the defendant shall fail to appear and answer, the cause may be set down for trial, but the bill shall not be taken for confessed, but proof shall be required to support the allegations thereof, as in cases where they are decided by answer.

§ 7. The court may pronounce a decree for a divorce, according to the provisions of this act; but such decree shall not operate so as to release the offending party, who shall remain, nevertheless, subject to all the pains and penalties, which the law prescribes against a marriage, where a former wife or husband is living.

§ 8. The court pronouncing the decree of divorce, shall also decree and order a division of the estate of the parties, in such way as to them shall seem just and right, having due regard to the rights of each party and their children, if any: *Provided, however,* That nothing herein contained, shall be construed to compel either party to divest him or herself of the title to real estate.

§ 9. Pending a suit for divorce, the court may make such temporary orders, respecting the property and parties, as they shall deem equitable.

former wife or husband living at the time of such marriage, shall be invalid from the beginning, and absolutely void.

The act of December 23, 1824, repeals this law as to all the grounds of divorce above specified, except that of "natural impotency," continuing at the time of the application for a divorce by the party injured. The concluding part of each section, however, suggests obvious reasons why they should be retained, at least in this form.

¹ See "Judicial Proceedings in Chancery," § 10.